

# Muslim Family Laws Ordinance, 1961

## THE MUSLIM FAMILY LAWS ORDINANCE, 1961

### Section 6. Polygamy.

(1) No man, during the subsistence of an existing marriage, shall, except with the previous permission in writing of the Arbitration Council, contract another marriage, nor shall any such marriage contracted without such permission be registered.

(2) An application for permission shall be submitted to the Chairman in the prescribed manner and shall state the reasons for the proposed marriage, and whether the consent of the existing wife or wives has been obtained.

### Section 7. Talaq (Divorce).

(1) Any man who wishes to divorce his wife shall, as soon as may be after the pronouncement of talaq in any form whatsoever, give the Chairman notice in writing of his having done so, and shall supply a copy thereof to the wife.

(4) Within thirty days of the receipt of notice under sub-section (1) the Chairman shall constitute an Arbitration Council for the purpose of bringing about a reconciliation between the parties, and the Arbitration Council shall take all steps necessary to bring about such reconciliation.

(5) A talaq unless revoked earlier, shall not be effective until the expiration of ninety days from the day on which notice under sub-section (1) is delivered to the Chairman.

### Section 9. Maintenance.

(1) If any husband fails to maintain his wife adequately, or where there are more wives than one, fails to maintain them equitably, the wife, or all or any of the wives, may apply to the Chairman who shall constitute an Arbitration Council, and the Council may issue a certificate specifying the amount which shall be paid as maintenance by the husband.

Roman Urdu Summary: Family Laws Ordinance 1961 ke tehat dosri shadi (polygamy) ke liye Arbitration Council ki permission zaroori hai (Section 6). Talaq ke liye Chairman ko written notice bhejna lazmi hai aur notice milne ke 90 days baad talaq effective hoti hai (Section 7). Agar shohar kharcha (maintenance) na de to bivi Section 9 ke tehat maintenance ke liye apply kar sakti hai.